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Subject: Adjudicating Claims Based on ADT and IADT (VA Form 21-6789)
Date: Monday, April 5, 2021 2:44:00 PM
Importance: High

RVSRs,

Team huddle tomorrow starting at 9:30am. Separate invite to follow.

Guidance concerning the subject of ADT/IADT for active contentions vs previously decided contentions. The manual reference for **III.ii.6.A.2.k. Adjudicating Claims Based on ADT and IADT** (particular step 7) has been reviewed by the quality team and approved by the VSCM. The procedures below are now in affect and you are required to follow them concerning any claim you make a decision on. We believe these are the appropriate steps to stay within the guidance for any quality review that may be subject to review.

TOPIC:

Adjudicating Claims Based on ADT and IADT and when a VA Form 21-6789 is necessary.

RVSR Process: Verification of service is the responsibility of all Claim Processors, including RVSRs, particularly when you are service connecting a condition for a period of ADT/IADT.

- RVSRs will properly document periods of ADT/IADT on a 21-6789 as outlined in M21-MR III.ii.6.A.2.k for current claimed conditions, regardless of the date of the period of service.
- Prior undocumented S/C conditions in a ADT/IADT Period: RVSRs will follow the manual requirement of M21-1 MR III.ii.6.A.2.k from the date of the manual change (7/8/2016) **and** document any prior S/C issues for the period of ADT/IADT for any rating decision made after 7/8/2016 when previously omitted (regardless of Station). This documentation can be on the same 21-6789 as the active EP condition(s). Periods of ADT/IADT conditions preceding 7/8/16 will not be required for backfill when no current claim is related to the period. Essentially a backfill of information since 7/8/2016. *RVSRs should identify on the 21-6789 they did not rate/evaluate the prior conditions and they are only identifying the condition for record keeping purposes for the ADT/IADT period of active duty.*
- “Backfill” of prior ADT/IADT contentions is not required unless there is an active

contention being considered for the ADT/IADT period.

- RVSRs (Decision Makers) should properly identify the 21-6789s in VBMS as periods of ADT and/or IADT for easy identification.

Examples:

- Veteran has a date of claim on or after 7/8/16 and no 21-6789 is on file for previously rated conditions. – Document all disabilities associated with the period of service. Indicate current claimed conditions, and annotate any conditions brought forward for record keeping purposes.
- Veteran has a claim for contentions rated prior to 7/8/16 and no 21-6789 is on file. – Document only the disabilities that are a part of the current claim on the new 21-6789.

Appropriate statement for review of the service dates are required:

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- **Appropriate Statement:** *Service in the Army National Guard from January 16-17, 2016, is now considered active service based on the grant of SC for right knee ACL injury that was incurred in the line of duty during this period of service.*
- **Not Appropriate Statement:** *Review of dates were decided by another RVSR. Deferral is uploaded via Post VSR request.*

Higher Level Reviews: If a 21-6789 is missed for a HLR grant of dates, let your Coach know. We will be looking at these on a case by case basis.

If there are any questions please let Bill and I know. See you online tomorrow.
Thanks everyone.

Joaquin